REPUBLIC OF THE PHILIPPINES
PROVINCE OF BATANGAS
MUNICIPALITY OF TUY

OFFICE OF THE SANGGUNIANG BAYAN

EXCERPT FROM THE MINUTES OF THE 68th REGULAR SESSION OF THE SANGGUNIANG BAYAN OF TUY, BATANGAS HELD AT THE MUNICIPAL SESSION HALL ON JANUARY 16, 2024

PRESENT:

HON. ARMANDO P. AFABLE,	MUNICIPAL VICE MAYOR, PRESIDING OFFICER,
Hon. Michael O. Perez,	Municipal Councilor,
Hon. Randoll I. Catapang,	Municipal Councilor,
Hon. Rafael C. Bautista,	Municipal Councilor,
Hon. Reymundo C. Rodriguez,	Municipal Councilor,
Hon. Aniceto C. Abiad,	Municipal Councilor,
Hon. Felisa C. Rivera,	Municipal Councilor,
Hon. Eduardo P. Afable Jr.,	Municipal Councilor,
Hon. Adrian C. Perez,	Municipal Councilor,
Hon. Ly-ann Angeline D. Avena,	Ex-Officio Member, SK Federation President.

ABSENT:

Hon. Roberto A. Mendoza,	Ex-Officio Member, ABC President.

RESOLUTION NO. 2024 - 020

A RESOLUTION APPROVING ORDINANCE NO. 001: "ADOPTING EXECUTIVE ORDER NO. 297, SERIES OF 2000 IN TUY, BATANGAS"

WHEREAS, received by the Sangguniang Bayan for appropriate action is the letter from Hon. Jose Jecerell C. Cerrado, Municipal Mayor, dated January 2, 2024, requesting to pass a resolution adopting Executive Order No. 297, series of 2000 in Tuy, Batangas;

WHEREAS; Section 16 of the Local Government Code or Republic Act No. 7160, also known as the General Welfare Clause providers in part that every local government unit shall ensure and support the maintenance of peace and order within their respective territorial jurisdiction;

WHEREAS, Executive Order No. 297 entitled Regulating the Manufacture, Sale, Distribution; and Use of PNP Uniforms, Insignias and Other Accoutrements was signed on October 4, 2000 to control and manage the unauthorized manufacture, sale, and distribution of PNP uniforms, insignias, and other accoutrements;

WHEREAS, E. O. No. 297 imposes as penalties the immediate closure of establishment, cancelation of business license or permit, condemnation, seizure and forfeiture of unauthorized items; and, imposition of reasonable fines for violators of the said order, all of which could be undertaken by the local government units concerned;

WHEREAS, in 03 September 2020, the Philippine National Police Directorate for Research and Development (PNP-DRD) has issued DRD Standard Operating Procedure No. 2020-001 prescribing the procedures and guidelines in handling of samples of PNP uniforms and accoutrements to ensure the integrity of the submitted samples as basis for issuance of Certificate of Conformity (COC);

WHEREAS, the unauthorized manufacture, sale, use, and distribution of PNP uniforms, insignias, and other accoutrement impose serious concerns since such symbolic PNP identifiers, instead of providing a comforting service of security, could be used by lawless elements in the commission of crimes within the Municipality;

WHEREAS, business establishments might engage in the manufacture, sale and distribution of PNP uniforms, insignias, and other accoutrement thus, there is a dire need to enact a corresponding ordinance to mitigate, or even eradicate, the proliferation of the unauthorized PNP uniforms and commission of illegal activities within the municipality of Tuy.

NOW, **THEREFORE**, on motion of Hon. Randoll I. Catapang and duly seconded by Hon. Felisa C. Rivera, the following ordinance was approved.

ORDINANCE NO. 001

AN ORDINANCE MANDATING ALL BUSINESSES OPERATING WITHIN THE TERRITORIAL JURISDICTION OF THE MUNICIPALITY OF TUY, BATANGAS ENGAGED IN THE MANUFACTURING, SELLING, OR DISTRIBUTING PNP UNIFORMS, INSIGNIAS, AND OTHER ACCOUTREMENTS TO SECURE PNP CERTIFICATE OF CONFORMITY AND PRESCRIBING PENALTIES FOR VIOLATIONS THEREOF

Be it ordained by the Sangguniang Bayan of Tuy, Batangas in session duly assembled;

SECTION 1. Title. This Ordinance shall be known as “The PNP Certificate of Conformity Ordinance”.

SECTION 2. Scope and Application. All businesses operating within the territorial jurisdiction of Tuy, whether in physical, online or in digital platforms, engaged in the manufacture, sale, and distribution of Philippine National Police uniforms, insignias, and other accoutrements. It includes enterprises dealing with raw materials for the production of aforementioned items.

SECTION 3. Definition of Terms.

A. **PNP uniforms, insignias and accoutrements** – These are authorized clothing, garment, distinguishing mark, emblem, merchandise, or decorations worn by bona fide members and officially acknowledged by the Philippine National Police.

B. **PNP Certificate of Conformity (COC)** – It is a certification issued by the PNP through the Directorate for Research and Development (DRD) which signifies authority to manufacture, and/or distribute PNP uniforms, insignias and accoutrements.

C. **Distributor** – The person who is an authorized agent or a supplier or manufacturer to supply or deliver PNP uniforms, insignias, and accoutrements wherein the latter has a valid PNP Certificate of Conformity.

D. **Manufacture** – It is an act of producing or trading of fit-to-use, ready-to-wear, or ready-to-use PNP uniforms, insignias, and other accoutrements.

SECTION 4. Requirement for PNP Certificate of Conformity. All businesses engaged and dealing with PNP uniforms, insignias, and accoutrements must secure a PNP Certificate of Conformity which shall be post-permit compliance to all businesses after issuance of a business permit.

SECTION 5. Coordination with the PNP. For effective implementation of this Ordinance, the PNP shall be integrated into the Integrated Business Permit and Licensing System (IBPLS), of the BPLO (Business Permit and Licensing Office), to ensure that all covered establishments engaged in the manufacturing, selling, or distribution of PNP uniforms, insignias, and other accoutrements that are applying for a business permit shall be evaluated by the dedicated PNP personnel.

The PNP shall also submit to the BPLO a Negative List of registered covered establishments who failed to ensure the PNP Certificate of Conformity.

SECTION 6. Authority To Inspect Establishments. The BPLO, in coordination with the Tuy PNP, shall periodically conduct joint inspection of covered business establishments requiring the presentation of its respective PNP Certificate of Conformity.

SECTION 7. Implementing Offices. The Business Permit and Licensing Office (BPLO) is the primary office mandated to make the Implementing Rules and Regulations (IRR) and to execute the provisions of this Ordinance, with the assistance of the Tuy PNP and in coordination with the Philippine National Police through the Directorate of Research and Development.

SECTION 8. Penalties. Failure to secure a PNP Certificate of Conformity or present the same during inspection shall warrant the issuance of appropriate Notice of Violation. Upon findings that the establishment continuously violates pertinent provision of this Ordinance, the BLPO may either order the suspension of the business operation, revocation of the business permit, or closure of the business establishment, depending of the nature of the violation committed.

In case of violations found during the aforementioned inspections for failure to present competent proof of authority to deal with PNP uniforms,. Insignias, and other accoutrements, the items found therein shall be seized or confiscated subject to proper disposed, without prejudice to the revocation of business permit and the filing of appropriate administrative, civil or criminal case.

A violator of the aforementioned provisions shall be imposed of the penalty amounting to Two Thousand and Five Hundred Pesos (PHP 2,500.00). Moreover, civilian wearing the PNP uniform who pretends to be a person in authority or public officer without being lawfully entitled shall be prosecuted for violation of Article 177 of the Revised Penal Code of the Philippines (Usurpation of Official Functions) upon the discretion of the court.

> ***Article 177. Usurpation of authority or official functions.*** *Any person who shall knowingly and falsely represent himself to be an officer, agent or representative of any department or agency of the Philippine Government or of any foreign government, or who, under pretense of official position, shall perform any act pertaining to any person in authority or public officer of the Philippine Government or any foreign government, or any agency thereof, without being lawfully entitled to do so, shall suffer the penalty of prision correccional in its minimum and medium periods.*

SECTION 8. Separability Clause. If for any reason, any section of this Ordinance shall be held unconstitutional or invalid, other sections which are not affected thereby shall continue to be in full force and effect.

SECTION 9. Repealing Clause. All ordinances, rules and regulations or parts thereof in conflict with this Ordinance are hereby repealed, provided that the rights that are vested upon the effectivity of this Ordinance shall not be impaired.

SECTION 10. Effectivity Clause. This Ordinance shall take effect upon approval.

I hereby certify that this is true and accurate copy of ordinance approved by the Sangguniang Bayan on January 16, 2024.

MERLINDA P. MENDOZA
SB Secretary

Attested by:

ARMANDO P. AFABLE
Municipal Vice Mayor

Approved by:

JOSE JECERELL C. CERRADO
Municipal Mayor